

National Academy of Medical Sciences Act, 2006

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Amending Acts

1. Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 2075.11.19
2. Act to Amend Some Nepal Acts, 2082 2082.04.14

Act No. 26 of the year 2063

An Act Made to Provide for the National Academy of Medical Sciences

Preamble: Whereas, it is desirable to make legal provisions for the establishment and operation of a National Academy of Medical Sciences for producing skilled manpower and providing quality health services to the general public by arranging high-level study and research in the field of medical science,

Now, therefore, the House of Representatives has enacted this Act in the first year of the issuance of the Proclamation of the House of Representatives, 2063. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "National Academy of Medical Sciences Act, 2063".

(2) This Act shall be deemed to have commenced from the 23rd day of the month of Baisakh of the year 2063. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Academy" means the National Academy of Medical Sciences established pursuant to Section 3.

(b) "Assembly" means the Assembly formed pursuant to Section 7.

(c) "Academic Council" means the Academic Council formed pursuant to Section 9.

(d) "Executive Council" means the Executive Council formed pursuant to Section 11.

(e) "Service Commission" means the Service Commission formed pursuant to Section 13.

(f) "Hospital" means the Bir Hospital established pursuant to Section 14.

(g) "Chancellor" means the Chancellor pursuant to Section 16.

(h) "Vice-Chancellor" means the Vice-Chancellor pursuant to Section 17.

(i) "Pro-Chancellor" means the Pro-Chancellor pursuant to Section 18.

(j) "Dean of Studies" means the Dean of Studies pursuant to Section 19.

(k) "Registrar" means the Registrar pursuant to Section 19.

(l) "Dean" means the Dean pursuant to Section 19.

(m) "Director" means the Director pursuant to Section 20.

(n) "Teacher" means a person assigned the responsibility of providing education and conducting research at the Academy.

(o) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

Chapter-2 Establishment, Form, Functions, Duties and Powers of the Academy

3. Establishment of the Academy: (1) The National Academy of Medical Sciences is established for, inter alia, conducting high-level study and research in the field of medical science.

(2) The principal office of the Academy shall be located in the Kathmandu Valley.

(3) The Academy shall be called "National Academy of Medical Sciences" in the English language. 4.

Academy to be an Autonomous and Corporate Body: (1) The Academy shall be an autonomous and corporate body with perpetual succession. (2) The Academy shall have its own separate seal for its business. (3) The Academy may, like a person, acquire, use, sell or otherwise dispose of movable and immovable property. (4) The Academy may, like a person, sue and be sued in its own name. 5. Form of the Academy: The Academy shall have the following organizations, and the collective form of these organizations shall be the form of the Academy:- (a) Assembly, (b) Academic Council, (c) Executive Council, (d) Service Commission, (e) Hospital, and (f) Other bodies as prescribed. 6. Functions, Duties and Powers of the Academy: (1) The functions, duties and powers of the Academy shall be as follows:- (a) To conduct study, teaching, training and research on various subjects related to health, (b) To provide quality health services, (c) To make agreements with domestic and foreign universities, hospitals and educational institutions to conduct study, teaching, training and research programs on various subjects related to health, (d) To produce necessary skilled manpower to provide quality health services, (e) To maintain coordination with domestic or foreign universities, hospitals or educational institutions to enhance the level of various programs operated by the Academy, (f) To establish, expand and strengthen relations with domestic and foreign universities, academies and international organizations related to health, and to exchange mutual cooperation, (g) To organize and cause to organize workshops, conferences, seminars on various subjects related to health, (h) To publish and cause to publish various books related to health, (i) To perform other functions as prescribed. (2) The functions, duties and powers of the Academy shall be exercised and performed through the organizations of the Academy. Chapter-3 Formation, Functions, Duties and Powers of the Assembly 7.

Formation of the Assembly: (1) There shall be an Assembly as the supreme body of the Academy. (2) The formation of the Assembly shall be as follows:- (a) Vice-Chancellor - Chairperson (b) Pro-Chancellor - Member (c) Member, National Planning Commission (looking after Health) - Member (d) Two persons nominated by the Assembly from among the Pro-Chancellors of universities or academies conducting study and research on medical subjects - Member (e) Secretary, Ministry of Health and Population - Member Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.(f) Secretary, Ministry of Education, Science and Technology - Member (g) Secretary, Ministry of Finance - Member (h) Chairperson, University Grants Commission - Member (i) Chairperson, Nepal Medical Council - Member (j) Chairperson, Nepal Health Research Council - Member (k) Dean of Studies - Member (l)

Dean - Member (m) Chief, Kathmandu Metropolitan City - Member (n) Two persons nominated by the Government of Nepal from among the Directors or Medical Superintendents of hospitals that have agreements with the Academy - Member (o) Dean, Institute of Medicine, Tribhuvan University - Member (p) One person nominated by the Assembly on the recommendation of the Academic Council from among scientists in the health sector - Member (q) Two persons nominated by the Assembly on the recommendation of the Academic Council from among teachers - Member (r) Chief of the nursing-related institution operated under the Academy - Member (s) Two persons nominated by the Government of Nepal from among distinguished scholars and social workers, ensuring representation of women as well - Member (t) Registrar - Member-Secretary (3) The term of office of nominated members under Sub-section (2) shall be three years. (4) The Assembly may, if it so desires, invite a person engaged in study and research work in the field of medical science to participate in the meeting of the Assembly as an observer. (5) The procedure relating to the meeting of the Assembly shall be as prescribed. 8. Functions, Duties and Powers of the Assembly: The functions, duties and powers of the Assembly shall be as follows:- (a) To approve the policies, plans and programs of the Academy, (b) To approve the rules of the Academy, (c) To pass the annual budget of the Academy, (d) To confer degrees, certificates, medals and awards to the concerned persons on the recommendation of the Academic Council, (e) To approve proposals submitted by the Academic Council and the Executive Council, (f) To perform other functions as prescribed. Chapter-4 Formation, Functions, Duties and Powers of the Academic Council 9.

Academic Council: (1) There shall be an Academic Council to function as the body to manage the educational, academic and research work of the Academy. (2) The formation of the Academic Council under Sub-section (1) shall be as follows:- (a) Dean of Studies - Chairperson (b) Representative (at least gazetted first class), Ministry of Health and Population - Member Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.(c) Representative (at least gazetted first class), Ministry of Education, Science and Technology - Member (d) Three persons nominated by the Assembly from among the teachers of the Academy - Member (e) Three persons nominated by the Assembly on the recommendation of the Academic Council from among the coordinators of programs on various subjects conducted by the Academy - Member (f) Two persons nominated by the Academic Assembly ensuring representation from among the teaching institutions conducting post-graduate level programs in the field of medical science - Member (g) Chief of the Nursing Campus - Member (h) Dean - Member-Secretary (3) The term of office of nominated members under Sub-section (2) shall be three years. (4) The procedure relating to the meeting of the Academic Council shall be as prescribed. 10. Functions, Duties and Powers of the Academic Council: The functions, duties and powers of the Academic Council shall be as follows:- (a) To conduct and cause to conduct study and research programs to provide education on various subjects and levels related to medical science, (b) To determine the qualifications of teachers required for the Academy, (c) To prepare curricula and textbooks, (d) To select students, (e) To conduct examinations and publish results, (f) To recommend to the Assembly to confer degrees and certificates of educational qualification to students who pass examinations, (g) To recommend to the Assembly to award prizes and medals to students who pass examinations with distinction, (h) To recommend to the Assembly to award prizes, medals and honorary degrees to students who make outstanding contributions in the field of medical science, (i) To recommend to the Assembly to provide scholarships to outstanding persons and students in study, training and research conducted by the Academy, (j) To determine fees for study, training and research, (k) To implement and cause to implement decisions related to the Academic Council approved by the Assembly, (l) To perform other functions as prescribed. Chapter-5 Formation, Functions, Duties and Powers of the Executive Council 11.

Formation of the Executive Council: (1) There shall be an Executive Council to function as the executive body of the Academy. (2) The formation of the Executive Council shall be as follows:- (a) Pro-Chancellor - Chairperson (b) Dean of Studies - Member (c) Dean - Member (d) One person from among teachers - Member (e) Director - Member (f) Registrar - Member-Secretary (3) The nomination of the member under clause (d) of Sub-section (2) shall be made by the Vice-Chancellor on the recommendation of the Pro-Chancellor. (4) The term of office of the nominated member under Sub-section (2) shall be three years. (5) The procedure relating to the meeting of the Executive Council shall be as prescribed. 12. Functions, Duties and Powers of the Executive Council: The functions, duties and powers of the Executive Council shall be as follows:- (a) To implement and cause to implement the decisions and directives of the Assembly, (b) To prepare the annual program, budget, progress report, audit report and other proposals of the Academy and submit them to the Assembly for approval, (c) To operate, supervise and protect the fund and movable and immovable property of the Academy, (d) To sell, give on contract or lease the movable and immovable property of the Academy subject to the policy directives of the Assembly, (e) To coordinate, supervise and inspect the programs operated by the Academy and submit a report thereof to the Assembly, (f) To prepare drafts of rules relating to the Academy and submit them to the Assembly for approval, (g) To appoint and promote teachers and employees required for the Academy on the recommendation of the Service Commission, (h) To accept donations, grants, financial and other assistance received by the Academy, (i) To perform functions as specified by the Assembly, (j) To perform other functions as prescribed. Chapter-6 Formation, Functions, Duties and Powers of the Service Commission 13.

Formation of the Service Commission: (1) There shall be a Service Commission to recommend for the appointment and promotion of teachers and employees of the Academy. (2) The Service Commission shall consist of a Chairperson and two Members. (3) The Assembly shall appoint the Chairperson and Members of the Service Commission from among the following persons:- (a) Chairperson, from among persons who have obtained at least a post-graduate degree in medical science and have worked in the relevant field for at least twenty years, (b) One Member, from among persons who have obtained at least a post-graduate degree in medical science and have worked in the relevant field for at least fifteen years, and (c) One Member, from among persons who have obtained at least a bachelor's degree in law, management or public administration and have worked in the relevant field for at least fifteen years. (4) The term of office of the Chairperson and Members of the Service Commission shall be four years. (5) Other functions, duties and powers of the Service Commission shall be as prescribed. (6) The remuneration, facilities and other terms of service of the Chairperson and Members of the Service Commission shall be as prescribed. (7) The procedure relating to the meeting of the Service Commission shall be as prescribed. Chapter-7 Establishment and Operation of Hospital and Educational Institutions 14. Establishment and Operation of Hospital: Amended by the Act to Amend Some Nepal Acts, 2082.(1) The Academy may, for high-level study and research in health services, establish and operate its own separate hospital or, by making a bilateral agreement with a central hospital of the Government of Nepal, use such hospital as a teaching hospital. Amended by the Act to Amend Some Nepal Acts, 2082.(2) Notwithstanding anything contained in Sub-section (1), the Academy may use the Bir Hospital, which has been established and is being operated under the prevailing law, as a teaching hospital for a period of seven years from the date of commencement of this Sub-section. (3) The operation and management of the Hospital shall be as prescribed. 15. Establishment and Operation of Educational Institutions: (1) The Academy may establish any educational institution with the objective of providing education in various subjects. (2) The Nursing Campus being operated under the Hospital at the time of commencement of this Act shall be deemed to have been established under Sub-section (1). (3) The operation of the Nursing Campus shall be as prescribed. Chapter-8 Office Bearers, Teachers and Employees

of the Academy 16. Chancellor: (1) The Prime Minister shall be the Chancellor of the Academy. (2) The Chancellor shall be the head of the Academy.

17. Vice-Chancellor: (1) The Minister or Minister of State for Health and Population shall be the Vice-Chancellor of the Academy. (2) The Vice-Chancellor may, as necessary, inspect the Academy and give directives to the Academy. 18. Pro-Chancellor: (1) The Pro-Chancellor shall be the chief office bearer working full time at the Academy. (2) To recommend for appointment to the post of Pro-Chancellor, a committee consisting of two other members under the chairpersonship of the Vice-Chancellor shall be formed by the Chancellor, and the Chancellor shall appoint the Pro-Chancellor on the recommendation of that committee. (3) The term of office of the Pro-Chancellor shall be four years. (4) In the absence of the Pro-Chancellor, the work to be done by him/her shall be as arranged by the Vice-Chancellor. (5) The functions, duties and powers of the Pro-Chancellor shall be as prescribed. (6) The remuneration, facilities and other terms of service of the Pro-Chancellor shall be as prescribed. 19. Dean of Studies, Registrar and Dean: (1) The Vice-Chancellor shall appoint the Dean of Studies, Registrar and Dean on the recommendation of the Pro-Chancellor. (2) The term of office of the Dean of Studies, Registrar and Dean shall be four years. (3) Other provisions relating to the appointment, functions, duties and powers, remuneration, facilities and terms of service of the Dean of Studies, Registrar and Dean shall be as prescribed. 20. Director: (1) There shall be a Director to function as the administrative head of the Hospital. (2) Provisions relating to the appointment, functions, duties and powers and terms of service of the Director shall be as prescribed. 21. Other Office Bearers: (1) The Academy may have other office bearers as prescribed. (2) Provisions relating to the appointment, functions, duties and powers and terms of service of the office bearers under Sub-section (1) shall be as prescribed. 22.

Power to Remove from Office: (1) If the Pro-Chancellor, Dean of Studies or Registrar fails to perform his/her official responsibilities or does not behave as per the office, or if one-fourth of the members currently present in the Assembly submit a written application to the Chancellor stating that he/she has not honestly performed his/her duties, the Chancellor shall form an investigation committee consisting of two members of the Assembly under the chairpersonship of the Vice-Chancellor. (2) If the investigation committee under Sub-section (1) recommends that the Pro-Chancellor, Dean of Studies or Registrar has failed to perform his/her official responsibilities, has not worked honestly, or has not performed his/her duties, and if that matter is passed by a meeting of the Assembly, the Chancellor shall remove such Pro-Chancellor, Dean of Studies or Registrar from his/her office. (3) Provisions relating to removal from office of other office bearers of the Academy other than the Pro-Chancellor, Dean of Studies or Registrar shall be as prescribed. (4) Before removing an office bearer of the Academy under Sub-section (2) or (3), an opportunity to submit a defense against the allegation made against him/her shall be given. 23. Teachers and Employees of the Academy: (1) The Academy shall have teachers and employees in the required number. (2) The functions, duties and powers, and appointment of teachers and employees of the Academy shall be as prescribed on the recommendation of the Service Commission. (3) The functions, duties and powers, remuneration, terms of service and facilities of teachers and employees of the Academy shall be as prescribed. 24. Power to Depute Employees on Deputation: (1) The Government of Nepal may, upon the request of the Academy, depute any employee of the Nepal Health Service to the Academy on deputation. (2) An employee deputed under Sub-section (1) shall be entitled to facilities similar to those received by employees of the Academy. Chapter-9 Fund and Audit of the Academy 25.

Fund of the Academy: (1) The Academy shall have a separate fund. (2) The fund under Sub-section (1) shall consist of the following amounts:- (a) Amounts received from the Government of Nepal, (b) Amounts received

from educational fees and service fees, (c) Amounts received as grants or loans from domestic or foreign individuals, associations, institutions or foreign governments, (d) Amounts received from other sources. (3) Before receiving any amount under clause (c) of Sub-section (2) from foreign individuals, associations, institutions or governments, the Academy shall obtain the approval of the Government of Nepal. (4) The amount in the fund of the Academy shall be deposited by opening an account in any bank or financial institution. (5) All expenses of the Academy shall be borne from the fund under Sub-section (1). (6) The operation of the fund and account of the Academy shall be as prescribed. 26. Accounts and Audit: (1) The accounts of income and expenditure of the Academy shall be maintained in accordance with the prevailing law. (2) The audit of the Academy shall be carried out by the Auditor General. Chapter-10 Miscellaneous 27. Annual Report: (1) The Academy shall, within three months of the end of each fiscal year, submit an annual report of its activities carried out during the year to the Government of Nepal. (2) The report under Sub-section (1) shall, in addition to other matters, include a brief description of the work performed by the Academy during the year and the achievements of the Academy. 28. Power to Form Committees: (1) The Academy may, as necessary, form committees to smoothly carry out the work it is required to do under this Act. (2) The functions, duties and powers and the procedure of the committee formed under Sub-section (1) shall be as specified by the Academy at the time of forming such committee. 29. Proceedings Not to be Invalidated: No proceeding of the Academy shall be invalidated merely by reason of a vacancy in the position of any office bearer or member of the Academy or any defect in the appointment or nomination of any office bearer or member of any organization of the Academy. 30. Delegation of Powers: (1) The Assembly may, as necessary, delegate some of the powers vested in it under this Act to the Executive Council or the Pro-Chancellor. (2) The Academic Council, Service Commission or Executive Council may, as necessary, delegate some of the powers vested in them under this Act to any office bearer of the Academy or any subordinate body. 31.

Obligation to Work in Accordance with National Education and Health Policy: The Academy shall work in accordance with the national health and education policy approved by the Government of Nepal. 32. Power to Give Directives: The Government of Nepal may give necessary directives to the Academy in relation to its proceedings, and it shall be the duty of the Academy to follow such directives. 33. Contact with Government of Nepal: When the Academy needs to contact the Government of Nepal, it shall do so through the Ministry of Health and Population. 34. Employees may Remain in the Academy: (1) Among the employees of the Nepal Health Service working at the Hospital at the time of commencement of this Act, employees wishing to work in the Academy shall submit an application to the Ministry of Health and Population within six months from the date of commencement of the rules relating to employee service made under this Act. (2) If the Government of Nepal grants approval for an employee who submits an application under Sub-section (1) to remain as an employee of the Academy, such employee shall be deemed to be an employee of the Academy. (3) The service period served in the Health Service by an employee remaining in the Academy under Sub-section (2) shall be counted towards the service period of the Academy. 35. Power to Make Rules: The Academy may make necessary rules to implement the objectives of this Act. Provided that, while making rules on matters that cause additional financial burden on the Government of Nepal, prior approval of the Government of Nepal shall be obtained. 36. Repeal and Saving: (1) The Bir Hospital Development Committee (Formation) Order, 2063 is hereby repealed. (2) All proceedings done under the Order under Sub-section (1) shall be deemed to have been done under this Act. (3) All rights and liabilities including movable and immovable property, transactions, debts and credits in the name of the Bir Hospital Development Committee under the Order under Sub-section (1) shall be deemed to have been transferred to the Academy. (4) Employees working in the Committee under the Order under Sub-section (1) shall be

deemed to be in posts of equivalent level and grade of the Academy. (5) Proceedings being carried out from the Nursing Campus operated under the Committee under the Order under Sub-section (1) shall be deemed to have been carried out under this Act. 37.